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Peace and Reconciliation: A Way Forward

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Presented by Dr. Devanesan Nesiah, to the Association for Social Development at the OPA, 25 July 2015

I have enjoyed and appreciated the documents you have sent me and am happy to speak to you on Peace and Reconciliation – Way Forward. Up till the time of Independence in February 1984 our country was widely regarded, with much justification, as a model colony, eminently equipped to be a peaceful, democratic, stable, socially cohesive and economically upward mobile nation-state. There was much promise of our land and our people living up to the legend of the Isle of Serendipity.

But that was not to be. It is a goal that all of us had wanted, but it has yet eluded us. It is pertinent to briefly refer to some historical details to understand what has gone wrong. Already in the early 40s, J.R. Jayawardene had moved a resolution for Sinhala to be the only national language. Although that resolution was not passed and consensus was reached that both Sinhalese and Tamil should be recognized as national languages, that attempt by J.R. Jayawardene had created panic among the Tamil-speaking people. In consequence, in the 1948 general election, the sectarian Tamil Congress gained politically at the expense of the non-sectarian political parties. The Tamil Congress won most of the seats in the areas dominated by Ceylon Tamils. The "Indian Tamils" political parties won most of the seats dominated by that ethnic group.

The first major political initiative of the new UNP-led state was to deprive "Indian Tamils, then numbering over 10% of the total population of the Island, of citizenship and voting rights. This alienated the "Indian Tamils" and greatly alarmed the "Ceylon Tamils," also numbering over 10% of the population and the Tamil-speaking Muslims, then numbering about 7% of the population. Within a few years, there was a widespread campaign to make Sinhala the only official language of the country. This led to the passage of the Official Language Act of 1956, accompanied by violence against Ceylon Tamil, "Indian Tamil," and Muslim opponents of the bill demonstrating peacefully in Galle Face Green. Some Members of Parliament of the ruling party watched from the steps of the Parliament building; the police failed to protect the Satyagrahis. Since then there has been almost continuous ethnic conflict with sporadic violence against the ethnic minorities. There were major pogroms in 1958 and 1977, followed by a massive pogrom in 1983. Over the greater part of the 67 ½ years since Independence, ethnic consciousness and discrimination against ethnic minorities increased. There have been a few attempts to resolve the national question, but these were never sustained long enough to achieve that goal.

Among the Tamil people, armed and violent militant groups developed. Initially the violence was against those Tamils who they regarded as traitors. In course of time, the LTTE emerged as the leading and the most bloodthirsty of the groups. The state attempted to brutally suppress them. In turn, the LTTE engaged in the cold-blooded murder of many hundreds of Sinhalese, Muslim, and Tamil civilians as well as about 500 policemen who had surrendered to them, most of them Sinhalese but also including many Muslims. The attacks on Sinhalese and Muslim civilians were arbitrary. In the case of Tamil civilians, they targeted dissidents and members of dissident groups. The LTTE was also responsible for the sudden eviction of the entire Muslim population of the North, numbering many tens of thousands—a clear act of ethnic cleansing. In turn, the armed forces were no less brutal in their violence and also engaged in some ethnic cleansing. All this led inexorably to the civil war that began in 1985 and extended 24 years before it was won by the armed forces of our country. Physical combat ended on 17 May 2009. More than 6 years have elapsed, but peace has not yet dawned. Ever since the 50s, the country has remained ethnically polarized, and the State is seen as Sinhala dominated. This is reflected in the ethnic composition of the recruitment into the state services, particularly to the police and, most saliently, to the

armed services. In consequence, it is both relevant and unfortunate that more than 90% of the armed forces are Sinhalese and the Tamil composition of those forces is negligible; the large majority of those killed before and during the civil war were unarmed Tamil civilians, mostly caught in the crossfires, but many were deliberately targeted by the armed forces.

That is why there is controversy as to whether 17 May 2009 should be celebrated as Victory Day or Remembrance Day. To hundreds of thousands of Tamil families, especially those in the Vanni, who have lost close relatives, friends, and neighbors in that war, and who have themselves have been physically and psychologically scarred, it is impossible to celebrate it as Victory Day. If the state and most Sinhalese celebrate it as Victory Day, and most Tamils find it impossible to join in, it will only widen ethnic conflict and make reconciliation more difficult. It is for this reason that our present government observed that day as Remembrance Day and is on that understanding that two leading TNA Members of Parliament found it possible to participate in our national Independence Day celebrations this year. But that participation had fearful political consequences. They were called traitors and effigies of one of them were burnt by TNA hardliners. That he is yet alive is surely proof that the LTTE is no more within this island.

Remembrance Day is something that every Sri Lankan can participate in and celebrate, hopefully, the beginning of a process of reconciliation. A major attempt at reconciliation has happened only once earlier in our post-Independence period, with the election of the team led by Chandrika Bandaranaike in the Southern Provincial elections, the Parliamentary elections, and the Presidential elections in quick succession in 1994-1995. That initiative could not be sustained partly because of the opposition of the leading Sinhalese-led opposition political party (UNP) but also of the LTTE, which compelled the Tamil political leadership to reject a very progressive draft constitution prepared by Neelan Tiruchelvam and G.L. Peiris under the direction of then-President Chandrika Bandaranaike. Let us hope that the current initiative that began in January this year will be sustained, although there is much opposition from several leading Sinhalese and Tamil politicians. Some of the recent developments are disturbing. Hopefully, the forthcoming parliamentary elections will lead us to peace and reconciliation that have long eluded us.

On the question of whether we should celebrate victory or remembrance, it is relevant to recall the words of the great U.S. Black leader Frederick Douglass on the celebration of U.S. Independence on the Fourth of July. He said, "This Fourth of July is yours, not mine... The sunlight that brought light and healing to you had brought stripes and death to me." Likewise, many Tamils could say, "This 'victory' of Seventeenth of May is yours, not mine. The victory that brought release from LTTE violence to you was bought at the cost of unprecedented loss of loved ones and continued suffering to me." If we are to commemorate the Seventeenth of May 2009, and I think we should, we need to see it in terms that all Sri Lankans can identify with—the end of war and the beginning of the process of peace and reconciliation. Our people, men, women, and children, have lost many lives in the run-up to and in the process of the 24-years war. LTTE atrocities are well documented; those of the armed forces, less so. Under our new government, some steps toward reconciliation have already been taken and many others have been planned. Let us hope that next year on the Seventeenth of May there will be coordinated commemoration all over the island and that the entire population will participate in it as fellow citizens of one country.

Just as the present government has taken some long overdue and as yet utterly inadequate steps towards national reconciliation, so too has the TNA. For both parties these steps have had mixed dividends in terms of political support. Many Sinhalese leaders have welcomed, but many others have turned against the government; and likewise many Tamil leaders have welcomed, but many others have turned against the TNA leaders on this issue. The changes in the political spectrum are many and bewildering. The “old left” appears to have become more racist and the JVP and JHU less so. Unless the initiative of the present leadership of the state and of the TNA is continued, there is a grave danger that the ethnic hardliners will take charge and whatever progress has been made will unravel, leading to a situation even worse than before the January 2015 Presidential election.

The LTTE caused or provoked death and destruction on a massive scale and the victims included Sinhalese, Tamils, Muslims, and others. That it has now been eliminated from our country is something we should all welcome. They never represented the majority of the Tamil people, but terrorized them into abiding by their dictates just as the JVP at one time terrorized large sections of the Sinhalese people and many of their leaders into submission. The JVP has now transformed into a political party, but they have never as yet won more than a small fraction of the seats they contested. The LTTE never transformed into a political party; if they had, they too would have won at best a very small number of seats.

While we may welcome the absence of the LTTE, that it has been eliminated through a cruel and bloody war is most unfortunate. Many individuals and several organizations, including those representing two or three foreign countries, sought to negotiate a peaceful end to the conflict with the LTTE surrendering on negotiated terms acceptable to the majority of the population of this country, whether Sinhalese, Tamil, Muslim, or other. Those efforts did not succeed. Perhaps neither the state nor the LTTE were sincere in wanting a peaceful end to the conflict. The scale of the death and destruction during the war, especially in its final stages, has created bitter grievances and deep animosities. As in many parts of the globe and among many communities displaced or relocated, vivid tales of terrible atrocities may be passed down from generation to generation, causing wounds that may fester for centuries, unless they are openly acknowledged, adequately addressed, and justice done to their victims and their loved ones.

This will be extremely difficult. We may need a comprehensive Truth and Reconciliation Commission. Both for establishing such a Commission and for it to be successful in achieving its objectives, we need a transformation in the thinking and conduct of our people, Sinhalese, Tamil, Muslim, and others; of political leaders, service personnel, and laypeople; and leadership of the caliber (or close to it) of President Nelson Mandela and Archbishop Desmond Tutu. South Africa had the good fortune of having such leadership; and some other countries which also had Truth Commissions had varying levels of leadership quality approaching those of these two. Perhaps if we begin a process of preparing for a Truth and Reconciliation Commission, we might discover potential leadership who can successfully lead us through that process. Already, in the last few months, we have seen unexpected glimpses of such potential among some of our leaders.

For an effective Truth and Reconciliation Commission, our leaders, Sinhalese, Tamil, Muslim, and other, must be ready to acknowledge and confess their failure and that of their predecessors and colleagues to peacefully and effectively work towards national reconciliation. Those who engaged in violence should be willing to publicly confess their role and even to implicate their colleagues in such acts. In the case of the victims, families, and

loved ones, those alive should have the courage to publicly describe what happened, even in the presence of those responsible for the violence. We have a long way to go before we reach a situation where all of this can happen with the perpetrators and victims facing each other in public. The objective of a good Truth and Reconciliation Commission is not to bury or gloss over any part of the unpleasant past, but rather to publicly expose and record it all and then to deal with each issue, one by one, through a mix of, to use the language of Archbishop Tutu, “Retributive Justice” and “Restorative Justice.” A failed or incomplete Truth and Reconciliation Commission could be counter-productive.

In our own country, in the last six months, we have seen some potential for an effective Truth and Reconciliation Commission, but much more needs to be done and achieved before we can prudently establish such a Commission. But while working to create conditions for the major transformation required, we could immediately set about effecting important but less challenging transformations. For example, we can teach Sinhala, Tamil, and English to all our children and in all our schools. We can also reintegrate our schools as much as possible, i.e., in all linguistically mixed areas, have Sinhala and Tamil language streams in as many schools as possible, and thus have Sinhalese, Tamil, and Muslim students in the same school. As far as feasible, we need to erase the distinction that now exists between Sinhalese, Tamil, and Muslim schools, and in fact eliminate those categories. Our children in our schools have a critical role in national reconciliation, now and in the future.

We could have programs that encourage the mixing of children of different ethnicities and regions. As we progress towards trilingualism, it will be easier to have inter-school and inter-university exchange programs, where students are encouraged and supported with bursaries, to spend a semester or even a whole year in a school or university in another region, cutting across regional, linguistic, and ethnic boundaries. There could also be sports programs, cultural programs, oratorical programs, and other activities, that bring together students of different regions and different ethnicities. Our textbooks and curricula need to be overhauled with a view to national integration. It is pertinent to note that the Jaffna Youth Congress, founded almost a century ago by a group of young schoolteachers, was very progressive. Its policies were Gandhian, anti-imperialist, anti-caste discrimination, and egalitarian. They advocated the study of Sinhala and Tamil in addition to English as compulsory languages throughout the island. The reputation of the Jaffna Youth Congress was such that Gandhi, Nehru, Rajagopalachary, and several other Indian leaders, male and female, and virtually all the political leaders in Sri Lanka from every significant political party, from diverse ethnic, religious, regional, and political backgrounds, accepted the invitation of the Jaffna Youth Congress to visit Jaffna and to participate in some of their activities. All the leading schools in Jaffna accepted their language policy and taught Sinhala language to Tamil and Muslim children by recruiting Sinhalese teachers, including Buddhist bhikkhus, from the South. This practice continued till Sinhala was made the only official language in Sri Lanka, which precipitated the predictable decision of schools in Jaffna employing Sinhalese teachers to abandon teaching Sinhala to the local schoolchildren. Unfortunately, even before that, racist politics had spread all over the island. By the mid-20th century, our island had become deeply polarized on ethnic lines. We need to reverse this process and recapture the ethnic unity that prevailed, by and large, despite some problems from time to time, up till the mid-20th century.

It is a matter of shame that many terrible atrocities have occurred over a long period, but our people seem to have accepted them as unavoidable. There is little clamour for a public inquiry and for the truth to be exposed—many seem to feel that it is better to forget the unpleasant past than to dig it up, especially in the cases of wrong done by the armed forces. Strangely, this attitude also seems to apply to the cold-blooded murder of about 500 policemen who had surrendered to the LTTE on the orders of the state. One of those policemen, a Muslim, was injured but escaped death in the massacre and was helped to escape by an unknown Tamil farmer family at great risk to themselves. Some Sinhalese service personnel and a Dutch missionary also helped. The Dutch missionary, Ben Bavinck, refers to his ordeal in his autobiography titled “Of Tamils and Tigers”. This act of the Tamil farmer family and the inter-ethnic humanitarian cooperation that saved the life of the Muslim policeman need to be widely publicised and could be the basis of a long overdue national inquiry into that massacre.

Recently a good Sinhalese-speaking friend of mine celebrated his 50th birthday. I wanted to give him a Sinhalese translation of an ancient Tamil classic, preferably the epic *Silapathikaram*, written by a Tamil Jain scholar, the epic *Mannimekela*, written by a Tamil Buddhist scholar, or the comprehensive moral code *Thirukkural*, written by a Tamil Jain scholar. These epics and moral codes were written nearly two thousand years ago, when Jainism and Buddhism were the dominant religions of South India. Hinduism had regained its dominance in most of North India, but not yet in South India. Sadly, I had much difficulty in finding the kind of translations I was looking for in our bookshops. Eventually, with the help of two other friends, I found one part of the two-volume *Thirukurral* translation (inclusive of commentaries) in only one bookshop, and the other part in only one other. So I purchased both, and succeeded in giving a gift that I was happy with. Finding Tamil translations of good Sinhalese literature would have been just as difficult. In contrast, I recently read an outstanding novel translated into English from the original Norwegian. It had also been translated into 52 other languages. We have only two national languages, but very few of us have access to the literary treasures of the other national language, except through translations into English.

Even this limited access is mostly to the English-speaking and English-reading middle classes rather than to Sinhala and Tamil speaking schoolchildren. The state should make these available in all three languages in every school and library and in subsidized inexpensive editions in bookshops throughout the island. The school curriculum should be such that every schoolchild is induced to read some of those books translated from the national language other than that of the mother tongue of the child. This could be further promoted through essay, oratorical, and theatrical competitions.

While awaiting and working for the creation of conditions enabling a Truth and Reconciliation Commission and the setting-up and operation of such a Commission, we can do much to rehabilitate war victims. We need to restore the supremacy of civil administration. We need to disengage the armed forces from intruding into civilian occupation and the occupation of civilian land. It is not the business of the armed forces to operate hotels, restaurants, shops, farms, and travel agencies as they are doing now, depriving the locals of investment and employment opportunities. A few steps have been taken in these directions, but many more need to be taken. We should enable the minorities to think of the state as their state, the police as their police, and the armed forces as their armed forces. This is not so now, and we have a long way to go.

Reconciliation and nation-rebuilding will require not only a transformation in inter-ethnic relations but also, as mentioned earlier, an appropriate mix of Retributive and Restorative Justice. We need to work towards a good Truth and Reconciliation Commission, which should be able to take care of Retributive Justice as required. But Restorative Justice will require enormous contributions from overseas, from national and international donors as well as from our Diasporas. Hopefully the proposed Truth and Reconciliation Commission will involve and motivate our Diaspora to contribute heavily in a multiplicity of ways in the rebuilding of our country. There are signs, as yet inadequate, of positive rethinking on the part of sections of the Diaspora. Sections of the state have correctly attempted to engage those sections of the Diaspora which have responded to such initiatives. This is welcome and should proceed further.

Just as we need the cooperation of the Diaspora, we also need the cooperation of India. Contrary to what many suspect, India has always been totally opposed to the breakup of this country. There may have been a time when India worked to destabilise the Jayawardene and Premadasa administrations. But India would never have permitted secession, because that could have led to secession in India. In fact, India, in its own interest, will ensure that secession never occurs. For all of us in Sri Lanka, secession would be an unqualified disaster.

We have always been a predominantly agriculture-based society and are likely to remain so over the near future. Of other major contributions to our economy, remittances from skilled, semi-skilled, and even virtually unskilled labor overseas have loomed large in recent decades, but we cannot build our economic future on such a foundation. Tourism, especially eco-tourism, is recovering after the end of the war and, if we have peace, this rise is likely to continue. On account of our geography and ethnic mix, this has potential, not yet fully realised, to contribute to both economic growth and national reconciliation. The IT industry also has much promise. The fisheries sector has always been and is likely to continue to be a major component of our economy. But we need to build our economic future primarily on agriculture (inclusive of the plantations and the processing of their products). Our land and water resources are limited and the productivity of and equitable access to these resources are critical to inter-ethnic and inter-regional peace.

In conclusion, we have suffered from two massive and very costly youth revolts, viz, the LTTE rebellion based in the North and East and the JVP rebellion based largely in the southern provinces. In both these uprisings, underneath the salient and articulated ethnic issues, there were deep socioeconomic roots more clearly voiced in the case of the JVP revolt than in the case of the LTTE revolt. None of these problems have yet been adequately addressed. We need to pay more attention and divert more resources to meet the concerns of our youth and also, more efficiently tap their potential to contribute to nation-building. This would apply to Sinhalese, Tamil, and Muslim youth of every province of our island. There can be neither economic progress nor national reconciliation without due sensitivity to the concerns of our youth.

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